

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FLORENCE BIENVENU,

Petitioner

VS.

COLIN MATICHAK,

Respondent

) Case Number: FDV-24-817696

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

CUSTODY REVIEW HEARING; REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT,
BIFURCATION AND TERMINATION OF MARITAL STATUS; AND REMOVAL OF PETITIONER
FROM RESPONDENT'S HEALTH AND AUTO INSURANCE POLICIES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Custody and Visitation

A. Procedural History

- 1) The parties are Petitioner Florence Bienvenu (Mother) and Respondent Colin Matichak (Father).
- 2) They share one minor child: Esme (DOB: 5/11/24).
- 3) The genesis of this hearing is a Request for Domestic Violence Restraining Order (DVRO) that was granted (see Restraining Order After Hearing filed 7/2/25), protecting Mother from Father for a period of two years and containing custody and visitation orders.
- 4) At the 9/9/25 hearing, the Court modified the parenting plan such that Father's visitation would occur on Saturdays and Sundays from 1:00 p.m. to 3:00 p.m. at the North Beach Playground in San Francisco. The visits were to be non-professionally supervised by a mutually agreed-upon supervisor. The Court set a review hearing on 12/4/25 and ordered both parties to submit proposed step-up plans no later than 10 days before the hearing.

- 1 5) On 12/4/25, both parties and their counsel appeared at hearing and the Court made a finding of
2 good cause to continue the matter to 1/22/26.
- 3 6) On 1/22/26, the parties appeared with counsel and the Court issued the following orders:
- 4 a. Set a review of custody, visitation, and remaining financial issues for 4/2/26.
- 5 b. Denied Petitioner's request for an independent medical examination.
- 6 c. Ordered Father to have unsupervised visitation with the minor child on Saturdays from
7 10:30 a.m. – 5:30 p.m. and Sundays from 1:00 p.m. – 3:00 p.m. starting the weekend of
8 1/24/26 – 1/26/26, with Father responsible for pick up and drop offs with exchanges to
9 occur at North Beach Police Station.
- 10 d. Permitted Mother to designate another party to perform the exchanges, and any
11 information regarding exchanges or the third party appointed for exchanges shall be
12 communicated via counsel.
- 13 7) On 3/6/26, Mother filed an ex parte request seeking emergency orders that "Father's visits shall
14 be professionally supervised pending evaluation of the child by the Child Trauma Research
15 Program."
- 16 8) On 3/6/26, Father filed a Responsive Declaration wherein he asked the Court to deny Mother's
17 emergency requests.
- 18 9) On 3/6/26, the Court; acting out of an abundance of caution, suspended Father's visitation
19 pending the evaluation.
- 20 10) On 3/20/26, the Court received and reviewed an "Investigation Narrative," which determined that
21 allegations of sexual abuse were inconclusive. The report is dated 3/2/26 and signed by
22 Protective Services Worker, Alia Hauwert and Protective Services Supervisor, Diana Martinez
23 Garcia. The determination that no "safety risks" between Father and the minor child were found
24 was important to Court.
- 25 11) At the prior 3/26/26 hearing, the Court confirmed that Mother continues to have sole legal and
26 sole physical custody and reinstated Father's unsupervised visitation. Based on the parties'
27 agreement, the Court continued the hearing set for 4/2/26 (review of custody, visitation, and
28 financial matters (see 1/22/26 order)) to 5/26/26.
- 29

1 12) On 4/16/26, Mother filed a Request for Domestic Violence Restraining Order, which was set to
2 be heard on 5/6/26.

3 13) On 5/6/26, the Court issued a 1st Amended Temporary Restraining Order wherein the Court –
4 based on the allegations against Father and out of an abundance of caution – ordered Father’s
5 visits be immediately (temporarily) suspended and denied Father’s request for supervised visits.
6 The Court issued the following additional relevant orders:

- 7 a. Matter is set for trial setting on 6/1/26 in Department 405 at 1:30 p.m.
- 8 b. The parties are already scheduled to appear in Court on 5/26/26 at 9:00 a.m. in
9 Department 403. This hearing shall be limited to financial matters only, including a
10 request for attorney fees by Mother. Both parties shall file and serve current Income and
11 Expense Declarations by 5/19/26.
- 12 c. Family Court Services is directed to conduct a Tier II investigation and prepare a report
13 regarding information gathered from CPS regarding this case.
- 14 d. The parties shall return for a review of custody and visitation issues and status of Tier II
15 report on 6/23/26 at 9:00 a.m. in Department 403.

16 14) On 5/14/26, the 5/26/26 hearing was continued to 6/9/26. The Court notes the issues set for
17 hearing on 5/26/26 were limited to Father’s 10/16/25 Request for Order and Mother’s oral request
18 for Family Code section 2030 attorney fees only.

19 **B. Findings and Order**

- 20 1) All issues related to child custody and visitation are presently set for hearing on 6/23/26 and will
21 not be adjudicated on 6/9/26.

22
23 II. Financial Matters

24 **A. Procedural History**

- 25 1) On 7/30/24, Mother filed a Petition for Dissolution in related case no. FDI-24-800082 indicating
26 that the date of marriage is 1/19/22 and date of separation is 5/21/24 for a marriage of 2 years and
27 4 months.
- 28 2) On 9/5/24, Father filed a Response and Request for Dissolution in related case no. FDI-24-
29 800082 indicating that the date of marriage is 1/19/22 and date of separation is 8/6/24.

- 1 3) On 10/1/24, the Court made child support (\$2,758) and temporary spousal support (\$3,408)
2 orders with Smith/Ostler bonus support effective 7/5/24. The parties were ordered to meet and
3 confer regarding arrears for the period of 7/5/24-9/30/24 considering any voluntary support
4 Father paid. The Court also awarded Mother \$39,975 in Family Code section 2030 attorney's
5 fees.
- 6 4) On 10/16/25, Father filed a Request for Order and Memorandum of Points and Authorities
7 seeking: (a) termination of spousal support as Father paid support for half the length of a short-
8 term marriage; (b) bifurcation and termination of marital status, with Mother responsible for
9 obtaining and paying for her own health insurance and Father maintaining health insurance for
10 the minor child; and (c) permission to remove Mother from Father's car insurance, which the
11 Court understands is moot. Father asserts that since July of 2024 to date he paid Mother \$156,855
12 (\$93,518 in child and spousal support plus \$10,097.79 in bonus support plus \$38,242 in rent and
13 utilities for May 2024- November 2024). Father asserts that there is no compelling reason for the
14 Court to deny his request for bifurcation and termination of marital status and he is current on all
15 support payments. Father states both parties have served their Preliminary Declarations of
16 Disclosure. It is Father's position that he made a global settlement proposal on 8/31/25 and
17 Mother did not provide any response. The matter was originally set for hearing on 12/30/25.
- 18 5) On 10/16/25, Father filed an Income and Expense Declaration.
- 19 6) At hearing on 12/4/25, the Court continued the 12/30/25 hearing date to 1/22/26.
- 20 7) On 1/8/26, Mother filed a Responsive Declaration and supportive pleading in opposition to
21 Father's Request for Order in related case no. FDI-24-800082. Mother requests the Court: (a)
22 order Father to continue to pay guideline temporary spousal support until the parties' assets and
23 debts are divided; (b) deny Father's request for bifurcation and termination of marital status as it
24 is barred by statute (Family Code section 2337) since Mother relies on Father's employer
25 provided health insurance; and (c) issue \$2,500 in Family Code section 271 sanctions against
26 Father for his failure to meet and confer prior to filing the instant request. Mother asserts that
27 Father unnecessarily increased fees by filing this Request for Order because Mother will not be
28 able to afford living in San Francisco without spousal support, she depends on Father's employer
29 provided health insurance, and Father's retirement account has not yet been joined or divided.

1 Mother further asserts that Father has not complied with prior orders regarding support arrears
2 (\$23,345.40), bonus support (\$30,472.66), and reimbursement of health insurance copays
3 (\$10,642). It is Mother's position that Father made an incomplete global settlement proposal on
4 8/31/25 and she is awaiting his responses to informal discovery as she does not have the funds to
5 conduct formal discovery.

6 8) On 1/14/26, Father filed a Reply Declaration reiterating his position that as of December 2025 he
7 has paid Mother temporary spousal support for half the length of a short-term marriage. Father
8 states that he cannot afford to continue paying support obligations. Father asserts he has paid
9 Mother \$83,804.00 in support over the past year, \$50,573.00 in attorney fees, and she will also
10 receive an additional \$35,000 in attorney's fees from the parties' jointly filed tax return. Father
11 believes Mother can become self-supporting and termination of marital status is not barred by
12 statute.

13 9) At the prior 1/22/26 hearing, the Court granted Mother's s request that the Court order Father to
14 reimburse Mother \$10,642 in health insurance copays and reserved jurisdiction over the
15 remaining financial issues for hearing on 4/2/26.

16 10) At the prior 3/26/26 hearing on custody and visitation, the parties agreed to continue the 4/2/26
17 hearing to 5/26/26.

18 11) At the prior 5/6/26 hearing, Mother made an oral request for Family Code section 2030 attorney's
19 fees and costs.

20 12) On 5/14/26, the 5/26/26 hearing was continued to 6/9/26 for adjudication of Father's 10/16/25
21 Request for Order and Mother's oral request for Family Code section 2030 attorney fees. See
22 Continuance Order filed 5/14/26.

23 13) On 5/18/26, Mother filed an update declaration stating that the parties reached an agreement on
24 4/13/26 that they would jointly file tax returns for 2025. Mother asserts the parties discussed
25 possibly filing joint tax returns for 2026 if Mother can remain covered under Father's employer-
26 provided health insurance until the end of 2026 (i.e., judgment of dissolution be entered after
27 12/31/26). Mother requests unpaid support (\$23,345.40 as ordered on 10/1/24) and bonus support
28 (\$30,472.66 as ordered on 10/1/24) arears be ordered paid within 30 days and reimbursement of
29 \$6,213 in health-insurance copays that were paid to Father by the insurer. Mother requests

1 \$50,000 in attorney's fees to prepare for and participate in the upcoming four-day domestic
2 violence trial.

3 14) On 5/18/26, Mother filed an updated Income and Expense Declaration.

4 15) On 5/19/26, Father filed an updated Income and Expense Declaration.

5 **B. Findings and Order**

6 1) **Bifurcation and Termination of Marital Status:** Public policy favors bifurcation and
7 termination of marital status. Since denial of such a request would conflict with public policy, the
8 opposing party must show compelling evidence that actual prejudice would result. See *Gionis v.*
9 *Sup.Ct.* (1988) 202 CCA3d 786, 788-90.

10 2) Based on the pleadings filed with the Court and signed under penalty of perjury, the Court finds
11 that Mother did not meet this burden. The Court further finds that:

- 12 a. Mother filed for a Petition for Dissolution on 7/30/24.
 - 13 b. Father filed a Response and Request for Dissolution on 9/5/24.
 - 14 c. Under Family Code section 2339(a), the Court first acquired jurisdiction over Father
15 when Father was served with Mother's Petition and Summons on 9/5/24.
 - 16 d. Within the Petition and Response, both parties indicate that they were residents of
17 California for at least six months and of San Francisco County for at least three months
18 immediately preceding the filing of the Petition.
 - 19 e. Within the Petition and Response, both parties request a divorce based on irreconcilable
20 differences.
 - 21 f. On 11/14/24, Father filed a Declaration Regarding Service of Declaration
22 of Disclosure stating that his Preliminary Declaration of Disclosure was served on the
23 other party's attorney by email on 11/8/24.
 - 24 g. In Father's Request for Separate Trial (attached to Father's Request for Order), he listed
25 the following retirement plans under the prompt "All pension or retirement plans in
26 which the community has an interest are listed below": Fidelity – Apple 401k Plan
27 xx7886 (in Respondent's name). The Court finds that this type of retirement account does
28 require joinder to this action under Family Code section 2337(d).
- 29

- 1 3) Based on the foregoing, Father's request to bifurcate and terminate the parties' marital status is
2 GRANTED. Each party is restored to their previous single status as of 6/9/26. The Court finds
3 that this termination date meets the requirement set forth in Family Code section 2339(a).
- 4 4) As set forth in the attached Bifurcation of Status of Marriage or Domestic Partnership (FL-347),
5 the protections of Family Code section 2337I(1)-(9) shall apply against Father until judgment is
6 entered and becomes final on all remaining issues. In Father's pleadings he states that he cannot
7 maintain Apple coverage if status is terminated. Based on a preponderance of the evidence
8 presented the Court finds that Father is financially able to comply with the requirement to provide
9 and maintain – at his own expense –comparable health insurance coverage for Mother. Father
10 conceded he will do so if ordered by the Court. If comparable coverable is not available, Father
11 shall be responsible for Mother's health and medical care to the extent the care would have been
12 covered absent dissolution. Father shall indemnify and hold Mother harmless from any adverse
13 consequences resulting from the loss of existing coverage.
- 14 5) The parties are reminded that despite the termination of their marital status, the Standard Family
15 Law Restraining Orders set forth in the Summons continue to apply to both parties per Family
16 Code section 233(a).
- 17 6) The Court's jurisdiction to adjudicate all remaining issues (including the issues outlined below) in
18 this dissolution matter is reserved under Family Code section 2337(f).
- 19 7) **Termination of Spousal Support:** Per *Marriage of Burlini* (1983) 143 Cal.App.3d 65,
20 "Temporary spousal support is utilized to maintain the living conditions and standards of the
21 parties in as close to the status quo position as possible pending trial and the division of their
22 assets and obligations."
- 23 8) Here, the Court adopted Father's proposed support calculation and issued a temporary monthly
24 spousal support order of \$3,408 on 10/1/24.
- 25 9) For spousal support termination requests, a court must consider all the Family Code
26 section 4320 factors; therefore, the Court applies the following Family Code
27 section 4320 analysis:
- 28 10) *The extent to which the earning capacity of each party is sufficient to maintain the standard of*
29 *living established during the marriage, taking into account all of the following: (i) The*

1 *marketable skills of the supported party; the job market for those skills; the time and expenses*
2 *required for the supported party to acquire the appropriate education or training to develop*
3 *those skills; and the possible need for retraining or education to acquire other, more marketable*
4 *skills or employment. (ii) The extent to which the supported party's present or future earning*
5 *capacity is impaired by periods of unemployment that were incurred during the marriage to*
6 *permit the supported party to devote time to domestic duties.*

- 7 a. Regarding the marital standard of living, Father reports that the parties maintained an
8 upper-class lifestyle during marriage that exceeded their financial means including living
9 in a luxury apartment and purchasing two luxury cars. Father states that the parties
10 carried credit card debt to cover basic living expenses, though he was able to set aside
11 some savings through equity compensation from his employment at Apple. Father states
12 that the parties have \$260,000 in loans associated with using in-vitro fertilization (IVF)
13 and surrogacy to start a family.
- 14 b. Mother agrees that the parties maintained an upper-class lifestyle during marriage and
15 adds that the parties frequently traveled for leisure and maintained an active social
16 lifestyle. Mother asserts that this lifestyle was supported by Father's income and the
17 parties were able to able to set aside retirement savings and investments.
- 18 c. It is undisputed that Father is employed by Apple and his income supported the parties
19 during marriage, while Mother has been unemployed since 2020 when the parties moved
20 from Canada to the United States (U.S.) for Father's job. Mother worked as a securities
21 attorney in Canada prior to moving to the U.S. Mother is not licensed as an attorney in
22 the U.S.
- 23 d. Father reports that Mother was never unemployed to devote time to domestic duties or to
24 support Father's career, rather her decision to remain unemployed was voluntary. Father
25 states that when Mother was employed, she earned \$12,500 per month and she is highly
26 educated (has a Juris Doctor/law degree) and speaks multiple languages. Father believes
27 Mother is reasonably employable in the current job market even without taking the
28 California Bar Exam.
- 29

- 1 a. Mother reports to secure gainful employment she would need to prepare for the
2 California Bar Exam or seek other training as she has been out of the workforce for five
3 years. Mother believes she is currently unable to earn an income to support herself as she
4 is the primary caregiver of the parties' daughter and suffers repercussions of domestic
5 violence.

6 1) *The extent to which the supported party contributed to the attainment of an education, training, a*
7 *career position, or a license by the supporting party.*

- 8 a. Mother left her job as a securities attorney in Canada to support Father's employment at
9 Apple by moving to the U.S. (San Francisco) where she is not licensed to practice law.

10 2) *The ability of the supporting party to pay spousal support, taking into account the supporting*
11 *party's earning capacity, earned and unearned income, assets, and standard of living.*

- 12 a. Father reports that he cannot afford to pay spousal support as the lifestyle the parties
13 maintained exceeded their means and he is responsible for significant community debt.
14 As of October 2025, Father reports carrying approximately \$63,000 in outstanding credit
15 card debt, \$91,000 in surrogacy loans, and \$361,440 in student loans.

- 16 b. Per Father's Income and Expense Declaration filed 10/16/25, Father earns an average
17 monthly income of \$17,320 and \$8,333 in employee stock grant vesting. Father lists
18 \$8,223 in cash assets, \$18,571 in easily saleable funds, -\$440,993 in personal property,
19 and \$16,024 in average monthly expenses.

- 20 c. Per Father's updated Income and Expense Declaration filed 5/19/26, Father earns an
21 average monthly income of \$17,993.26 and \$3,237.50 in monthly bonuses. Father lists
22 \$12,658.07 in cash assets, \$45,334.73 in easily saleable funds, -\$337,080.07 in personal
23 property, and \$17,932.24 in average monthly expenses.

24 3) *The needs of each party based on the standard of living established during the marriage.*

- 25 a. Father reports that he is unable to afford his average monthly expenses without
26 termination of the spousal support order.
- 27 b. Mother asserts that she cannot afford to live in San Francisco and care for the child if
28 support is terminated. Mother states that she cannot afford the marital standard of living
29 even with the temporary spousal support order in place.

- 1 c. According to Mother, Father lives in a two-bedroom apartment in Palo Alto and
2 continues to travel frequently, while Mother and the minor child live in a studio
3 apartment in San Francisco.
- 4 d. According to Father, his income cannot sustain two separate households at the level of
5 spending that existed during marriage.

6 4) *The obligations and assets, including the separate property, of each party.*

- 7 a. Mother reports that she has no separate property, carries credit card debt, and has taken
8 loans from family to pay for attorney's fees. Mother asserts that Father has exclusive
9 access to all community property assets.
- 10 b. Father reports his assts include Sofi Savings x6414; Chase Checking x0402; Chase
11 Checking x5635; Royal Bank of Canada x6106; Sofi Checking x8922; E*Trade from
12 Morgan Stanley x0761 - Cash Balance; Fidelity - Apple 401k Plan xx7886; Optum Bank
13 HSA x973; and credit card rewards points.
- 14 c. Father reports his debts include Student Loans Nelnet x5483; SoFi Bank Personal Loan
15 x8633; Chase x0924; Chase x7561; Apple x8154; Family loan -attorney's fees; Personal
16 loan - Cal & Wendy Matichak.

17 5) *The duration of the marriage.*

- 18 a. The parties appear to agree that the date of marriage is 1/19/22 and date of separation is
19 5/21/24 for a marriage of 2 years and 4 months (per each party's FL-157).

20 6) *The ability of the supported party to engage in gainful employment without unduly interfering*
21 *with the interests of dependent children in the custody of the party.*

- 22 a. The parties share one child, Esme, who is 2 years old (DOB: 5/11/24). Esme remains in
23 the care of Mother outside of Father's court ordered visitation, which is temporarily
24 suspended at this time.
- 25 b. According to Mother, Esme is not yet pre-school aged so Mother believes she is currently
26 unable to earn an income to support herself as she is the primary caretaker of Esme.
- 27 c. Mother asserts that the parties agreed that Mother would care for Esme full-time when
28 she was born.

29 7) *The age and health of the parties.*

- a. Mother is 34 years old.
- b. Father is 38 years old.
- c. Both parties report that Mother has physical and mental health conditions. Mother asserts that these conditions prevent her from seeking employment, which Father disputes.
- d. Mother states that Father is diagnosed bipolar but has maintained full-time employment. Father asserts that he experienced “a single, isolated mental health emergency precipitated by relational stress with [Mother] and lack of sleep.” Father agrees that he has maintained full-time employment.

8) *All documented evidence of any history of domestic violence, as defined in Section 6211, between the parties or perpetrated by either party against either party’s child, including, but not limited to, consideration of: (1) A plea of nolo contendere. (2) Emotional distress resulting from domestic violence perpetrated against the supported party by the supporting party. (3) Any history of violence against the supporting party by the supported party. (4) Issuance of a protective order after a hearing pursuant to Section 6340. (5) A finding by a court during the pendency of a divorce, separation, or child custody proceeding, or other proceeding under Division 10 (commencing with Section 6200), that the spouse has committed domestic violence.*

- a. On 7/2/25, the Court granted a two-year restraining order against Father under which Mother is a protected party. See Restraining Order After Hearing filed 7/2/25.
- b. The Court also reviewed and considered the Final Statement of Decision filed 7/28/25.
- c. The parties are in active domestic violence litigation and the matter is currently being set for a multi-day trial.

9) *The immediate and specific tax consequences to each party.*

- a. The Court does not find that this factor has a significant impact on its analysis, though Father reports that payment of spousal support significantly impacts his financial situation since the obligation to pay spousal support eliminates his ability to contribute to a tax deferred retirement account, thereby removing a potential tax deduction and resulting in higher tax liability.

10) *The balance of the hardships to each party.*

1 a. Father asserts that continuing to pay spousal support would cause him a hardship as he is
2 unable to pay down community debts because of his spousal support obligation.

3 b. Mother asserts that termination of spousal support would cause her a hardship as she
4 would not be able to afford rent and other living expenses.

5 11) *The goal that the supported party shall be self-supporting within a reasonable period of time.*

6 *Except in the case of a marriage of long duration as described in Section 4336, a “reasonable*
7 *period of time” for purposes of this section generally shall be one-half the length of the marriage.*
8 *However, nothing in this section is intended to limit the court’s discretion to order support for a*
9 *greater or lesser length of time, based on any of the other factors listed in this section, Section*
10 *4336, and the circumstances of the parties.*

11 a. This is a short-term marriage of 2 years and 4 months, and Father has already paid
12 spousal support for half the length of marriage. No evidence was presented that Mother
13 has made any effort to become self-supporting. However, based on a totality of the
14 circumstances, the Court finds it is reasonable for Mother to continue to rely on spousal
15 support at this time.

16 12) *The criminal conviction of an abusive spouse shall be considered in making a reduction or*
17 *elimination of a spousal support award in accordance with Section 4324.5 or 4325.*

18 a. No evidence was presented that either party has been criminally convicted for domestic
19 violence.

20 13) *Any other factors the court determines are just and equitable.*

21 a. There are no additional factors beyond the ones described above.

22 14) Based on the forgoing, Father’s request for termination of spousal support is DENIED without
23 prejudice.

24 15) Mother is hereby put on notice that failure to make reasonable good faith efforts to become self-
25 supporting may be one of the factors considered by the Court as a basis for terminating spousal
26 support in the future.

27 16) Father’s request for permission to remove Mother from his car insurance is MOOT as the parties
28 agreed that Father can remove Mother from his car insurance plan.
29

1 17) Mother's request that the Court order Father to reimburse Mother \$6,213 in health insurance
2 copays is GRANTED as Mother provided documentary proof of the costs she incurred. See
3 Exhibit 2 of Mother's update declaration filed 5/18/26.

4 16) Mother's request for \$50,000 in Family Code section 2030 attorney's fees is DNEIED as there is
5 no statutory basis to make a request for attorney's fees to prepare for and participate in the
6 upcoming four-day domestic violence trial under Family Code section 2030.

7 18) The parties are ordered to meet and confer regarding unpaid support and bonus support arrears
8 Father may owe to Mother, and Father is encouraged to cure all unpaid support and bonus arrears
9 forthwith.

10 19) Mother's request for Family Code section 271 sanctions is DENIED. The Court cannot find that
11 Father's conduct frustrated the policy of law to encourage cooperation and settlement between the
12 parties.

13 20) Father's counsel shall prepare the written order after hearing and submit a Judgment terminating
14 marital status and reserving the Court's jurisdiction over all other issues (with an FL-347 that
15 mirrors the terms of the FL-347 attached hereto).

16 21) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).

PETITIONER: FLORENCE BIENVENU	CASE NUMBER:
RESPONDENT: COLIN MATICHAK	FDV - 24 - 817696

BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☐ petitioner ☒ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 6/9/26

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

Fidelity - Apple 401k Plan xx7886 (in Respondent's name)

Type of order attached

3a(1) 3a(2) 3a(3)

☐ ☒ ☐

☐ ☐ ☐

☐ ☐ ☐

☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
 The ☐ petitioner ☒ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.